



Portsmouth Corporation Act 1969

CHAPTER xxxvii

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Interpretation.

PART II

SUPERANNUATION

4. Interpretation for Part II.
5. Commencement of Part II.
6. Benefits in certain cases of premature retirement.
7. Power to require designated sums to be paid to trustees.
8. Transfers of employment.
9. Extension of foregoing sections.

PART III

FINANCE AND MISCELLANEOUS

Section

10. Investment of superannuation fund.
11. Expenses of investment of superannuation fund.
12. Power to borrow.
13. Power to Corporation to raise money by issue of bills.
14. Amendment of section 9 of Portsmouth Corporation Act 1967.
15. Loans for erection, etc., of buildings.
16. Designation of officers.
17. Repeals.
18. Protection of members and officers of Corporation from personal liability.
19. Costs of Act.

SCHEDULES:

Schedule 1—Trusts applicable to designated sums.

Schedule 2—Section 72 of the Portsmouth Corporation Act 1959 as amended by this Act.

ELIZABETH II



1969 CHAPTER xxxvii

Act to make further provision for the local
government and finances of the city of Portsmouth;
and for other purposes. [25th July 1969]

WHEREAS—

(1) The city of Portsmouth (hereinafter referred to as “the
city”) is a municipal borough subject to the Acts relating to
municipal corporations and is a county borough within the
meaning of the Local Government Act 1888 and is under the
management and local government of the lord mayor, aldermen
and citizens of the city (hereinafter referred to as “the
Corporation”):

(2) It is expedient to make further and better provision with
respect to the local government of the city and the finances of
the Corporation:

(3) It is expedient that the other provisions contained in this
Act be enacted:

(4) The purposes of this Act cannot be effected without the
authority of Parliament:

1933 c. 51.

(5) In relation to the promotion of the Bill for this Act, requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Portsmouth Corporation Act 1969.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Superannuation.

Part III.—Finance and miscellaneous.

Interpretation.

3.—(1) In this Act, unless the subject or context otherwise requires—

“the city” means the city of Portsmouth;

“the Corporation” means the lord mayor, aldermen and citizens of the city;

“the council” means the council of the city;

“enactment” includes an enactment in this Act or in any other general or local Act, and any order, byelaw, scheme or regulation for the time being in force within the city;

“the general rate fund” means the general rate fund of the city;

“the Minister” means the Minister of Housing and Local Government;

“town clerk” means the town clerk of the city and includes any person duly appointed by the Corporation to discharge temporarily the duties of that officer.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of, any subsequent enactment, including this Act.

PART II

SUPERANNUATION

(1) In this Part of this Act, except as otherwise expressly provided or unless the context otherwise requires, words and expressions to which meanings are assigned by the Local Government Superannuation Act 1937 have the same respective meanings; and—

“the Act of 1937” means the Local Government Superannuation Act 1937;

“contributor” means a contributor to the fund as respects whom the Corporation are the employing authority;

“death grant” and “transfer value” have, in relation to a contributor, the meanings assigned to them respectively by the Regulations of 1954;

“the fund” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

“the principal Acts” means the Local Government Superannuation Acts 1937 to 1953;

“the Regulations of 1954” means the Local Government Superannuation (Benefits) Regulations 1954;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to, or in respect of, him by way of interest on the amount of the contributions returned to him;

“superannuation benefit” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

(2) Without prejudice to the provisions of section 7 (Power to require designated sums to be paid to trustees) and section 8 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply with effect in relation to a person who is a contributor on or after the date of the coming into force of this Part of this Act subject to the extensions, modifications and applications of the principal Acts and regulations contained in this Part of this Act.

This Part of this Act shall come into force on 1st September 1969. Commencement of Part II.

(1) Where, after the coming into force of this Part of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated by the Corporation in the interests of efficiency before he has attained the age of sixty years, the Corporation shall, in certain cases of premature retirement, pay to him a lump sum of money calculated in accordance with the provisions of the principal Acts and regulations.

PART II
—cont.

attained the age of sixty-five years, the contributor shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor not later than one month after ceasing to hold his employment if he notifies the Corporation in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of this Part of this Act, a contributor who has attained the age of fifty-five years has completed twenty-five years' service but has not attained pensionable age terminates his employment at his own request, if superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection, he may, by notice given to the Corporation in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection, and any rights to which he is entitled thereunder, shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Corporation otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person who has become entitled to a superannuation benefit by virtue of subsection (2) of this section dies before any payment on account of such benefit has been made to him, the like benefits shall, as from the date of his death, be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of "service" in section 40 (1) of the Act of 1937, whether or not any payment has been made to him on account thereof.

1953 c. 25. (5) For the purposes of section 16 of the Local Government Superannuation Act 1953, and of any rules made thereunder, a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold

employment on the day immediately preceding the day on which that benefit first becomes payable to him, and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section "pensionable age" in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to a superannuation allowance by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954, as the case may be.

(1) A contributor may at any time, by notice in writing to the Corporation given in such form as the Corporation may approve, direct—

Power to require designated sums to be paid to trustees.

(a) that the provisions of this section shall apply to the amount (if any) which would, but for the giving of such notice, be payable to his estate either by way of death grant or as a sum calculated by reference to the aggregate amount of his contributions to the fund, with compound interest thereon; and

(b) that any such amount (hereafter in this section and in Schedule 1 to this Act referred to as "the designated sum"), instead of being paid to his estate, shall be paid to such responsible persons, not being less than two nor more than four in number, as shall be appointed for that purpose by the Corporation (hereafter in this section and in the said Schedule 1 referred to as "the trustees") to be held upon the trusts, and with and subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

Any direction given in accordance with this section shall be effective, and the designated sum shall accordingly be paid to trustees and shall be held by them upon the trusts, and with subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 1 may from time to time be varied by resolution of the Council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Corporation after the making of such variations.

Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

PART II
—cont.Transfers of
employment.

(5) In this section and in the said Schedule 1, "contributor" includes any person who, on or after the date of the coming into force of this Part of this Act, is a contributor to the fund; "former contributor" shall be construed accordingly.

8.—(1) The Corporation may, in accordance with the provisions of a scheme made by them for the purposes of this section—

(a) as respects any contributor who ceases or has ceased to hold employment with the Corporation in order to enter an employment (in this paragraph referred to as "the new employment") in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or person responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment with the Corporation:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date may be prescribed under the scheme: and

(b) as respects any person who enters or has entered in employment with the Corporation from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment in or by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder, as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Minister, and the Minister may approve any such scheme, either with or without modifications, after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

PART II
—cont.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force, may make any amendments or modifications of that superannuation scheme which may be desirable to facilitate the operation of any scheme made by the Corporation under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subsection (1) (a) (i) of this section or to such payment by way of a transfer value or otherwise as is referred to in subsection (1) (b) of this section.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or by 1948 c. 33. virtue of any other enactment apart from this section, providing the preservation of superannuation rights following a change of employment.

(7) The Corporation may, at the request in writing of any other employing authority, being the employing authority of any person who participates in the benefits of the fund, determine that, subject to the provisions of this section and to such terms and conditions and from such date as may be agreed between the Corporation and the employing authority, all or any of the provisions of the last three foregoing sections of this Act, and of any scheme made under section 8 (Transfers of employment) of this Act, shall extend and apply in relation to that person.

(8) An employing authority may make any such request to, and enter into and carry into effect any such agreement with, the Corporation as is mentioned in subsection (1) of this section notwithstanding anything contained in any enactment; and, where under any enactment or any agreement made under an enactment provision is made for expenditure to be reimbursed to an employing authority to the fund, such provision shall extend and apply in a like manner to any expenditure incurred under any of the said foregoing sections or the said scheme in pursuance of the provisions of this section.

(9) In this section any reference to a person shall be deemed to include a reference to any class or description of persons.

PART III

FINANCE AND MISCELLANEOUS

Investment of
superannuation
fund.
1959 c. xlv.

10. Section 72 (Investment of superannuation fund) of Portsmouth Corporation Act 1959 shall be amended in accordance with the following provisions of this section and shall accordingly have effect as set out in Schedule 2 to this Act:

(1) For paragraph (a) of subsection (1) there shall be substituted the following:—

“(a) in or upon any investments for the time being authorised by law for the investment of trust funds;”

(2) For paragraphs (e) to (h) of subsection (1) there shall be substituted the following:—

“(e) in or upon any of the stocks, funds or securities of the government of any foreign country or state; or

(f) in or upon the bonds, debentures, debenture stock, convertible debenture stock, obligation securities of any company incorporated under general or special Act of the United Kingdom Parliament or under any royal charter, or registered or incorporated in any part of the world; or

(g) in or upon any guaranteed, preference, ordinary stock or shares, or any preferred or deferred or other stock or shares, of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter, registered or incorporated in any part of the world, being stock or shares which at the time of making the investment are quoted on any recognised stock exchange or similar institution; or

(h) in the purchase, whether alone or jointly or in common with any other person or corporation, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement; or

(i) in the advance of money upon the security of—

(i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or

(ii) any legal estate or interest in immovable property comprised in a building agreement as specified in paragraph (h) of this subsection;

and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Corporation, or by a mortgage or security made jointly to the Corporation and any other person; or

(j) in undertaking or financing, whether alone or jointly with any other person—

(i) the erection of a new building or the improvement or extension of an existing building; or

(ii) building operations or other development; on land belonging to the Corporation or to any other person, or on land which is, or will be, held by the Corporation jointly or in common with any other person; or

(k) upon the security of freehold or leasehold ground rents, land charges or rentcharges;”:

(3) For the proviso to subsection (1) there shall be substituted the following:—

“ Provided that—

(i) no such moneys as aforesaid shall be invested in any investment of the nature specified in paragraph (g) of this subsection at any time when the value of all the investments made under the said paragraph (g) which form part of the superannuation fund equals or exceeds three-quarters of the total value of the assets of that fund; and

(ii) no such moneys as aforesaid shall be invested in any investment of the nature specified in paragraphs (h) and (j) of this subsection at any time when the value of all investments made under the said paragraphs (h) and (j) which form part of the superannuation fund equals or exceeds one-quarter of the total value of the assets of that fund.”:

(4) After subsection (2), there shall be inserted the following:—

“(3) In subsection (1) of this section ‘recognised stock exchange’, in its application to the United Kingdom, means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) 1958 c. 45. Act 1958, or the Belfast Stock Exchange.”

All costs, charges and expenses incurred by the Corporation Expenses of investing moneys forming part of the superannuation fund investment of moneys by them, or otherwise in relation thereto, shall be superannuation fund. paid by the Corporation out of that fund.

PART III
—cont.Power to
borrow.

12.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

1933 c. 51.

and, subject to the provisions of this section, Part IX of the Local Government Act 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

1946 c. 58.

(3) It shall not be lawful to exercise the powers of borrowing conferred by subsection (1) (a) of this section, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Power to
Corporation
to raise
money by
issue of bills.

13. In addition to the modes of borrowing prescribed by the Local Government Act 1933, the Corporation may raise money—

- (1) for any purpose for which the Corporation are authorised to borrow;
- (2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;

by means of bills to be called “Portsmouth Corporation Bills” (in this section referred to collectively as “bills” and separately as a “bill”), subject to, and in accordance with, the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the time therein mentioned, being a date not more than twelve months from the date of the bill;
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable;
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine;
- (d) Bills shall be issued under the authority of a resolution passed by the council, and shall bear the signature of the treasurer of the city or of some other person authorised by the council;
- (e) The Corporation may make regulations providing for—
 - (i) the preparation and form and the mode of payment and cancellation of bills;

(ii) the issue of a new bill in lieu of one defaced, lost or destroyed;

(iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;

(iv) the giving of a proper discharge on the payment of a bill; and

(v) amending or revoking any regulations previously made or deemed to have been made under this paragraph:

(f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill, and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(i) the sum of one million five hundred thousand pounds; or

(ii) one-fifth of the amount of the estimated gross rate income of the city during the then current financial year;

whichever is the greater:

(h) Subject to the provisions of the last foregoing paragraph the Corporation may renew a bill at maturity:

(i) The Corporation may borrow for the purpose of repaying the principal money raised by bills but, except as aforesaid, any power of the Corporation to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills:

(j) In this section—

“ gross rate income ” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

1967 c. 9.

“ revenues ” has the same meaning as in section 218 of the Local Government Act 1933;

1933 c. 51.

“ signature ” includes a facsimile of a signature by whatever process reproduced.

PART III
—cont.

Amendment
of section 9 of
Portsmouth
Corporation
Act 1967.

1967 c. xxxvi.

14. Section 9 (Power to Corporation to assist industry) of the Portsmouth Corporation Act 1967 shall be amended as follows:

For the words from “if requested so to do” to the word “an industrial building is built”, there shall be substituted the words “if requested to do so by any person who is the owner or intended owner or lessee or intended lessee of any land upon which an industrial building is built”.

Loans for
erection, etc.,
of buildings.

15.—(1) The Corporation may advance money to—

- (a) any person for the purpose of enabling or assisting him to purchase or lease any land; or
- (b) the owner, purchaser or lessee of any land for the purpose of enabling or assisting him to build or carry out work on such land, or to extend or improve any existing building thereon:

Provided that any such advance shall not exceed nine-tenths of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

1963 c. 29.

(2) For the purposes of this section the provisions of sections (2), (4) and (5) of section 3 of the Local Authorities (Land) Act 1963, regulating the form and conditions of advances made by a local authority for the erection of buildings on land sold or let by them, shall apply and have effect as if, for references therein to an advance made under the said section 3, there were substituted references to an advance made under subsection (1) of this section and subject to any other necessary modifications.

(3) Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times to enter any land, building or works in respect of which an advance is made under this section for the purpose of ascertaining whether the conditions subject to which the advance is made are being complied with.

(4) The borrower may with the permission of the Corporation (which shall not be unreasonably withheld) at any time transfer his interest in the land in respect of which the advance was made, but any such transfer shall be made subject to the terms of the mortgage securing the advance.

(5) In this section—

“lessee” includes a person to whom the Corporation have agreed to grant a lease and “lease” shall be construed accordingly; and

“owner” means the person (other than a mortgagee not in possession) entitled, either with or without the consent of any other person, to dispose of the fee simple of the land.

10.—(1) Notwithstanding anything in Part IV of the Local Government Act 1933, or in any other enactment—

PART III
—cont.

Designation
of officers.
1933 c. 51.

(a) the Corporation may from time to time by resolution determine that the office, style or title of any officer of the Corporation shall be that specified in the resolution instead of that specified in the said Act of 1933 or in any other enactment; and

(b) where by virtue of any local enactment in force in the city, any function is required or authorised to be carried out by any officer of the Corporation specified in the enactment, the Corporation may from time to time by resolution determine that that function shall be carried out by the officer holding the office or bearing the style or title specified in the resolution in place of the officer specified in the enactment.

(2) Anything done by an officer as holding the office, or in the style or title specified in any resolution passed under subsection (1) of this section, shall be valid and effectual for all purposes as it would have been had it been done by the officer in the office, and holding the style or title, specified in the said Act of 1933 or other enactment.

As from the date of the passing of any resolution under subsection (1) of this section, any reference (whether specific or general) in any enactment or document to the office, style or title of an officer to whom the resolution relates shall be construed as the office, style or title specified in the resolution were substituted for the office, style or title specified in that enactment or document.

17. The following enactments are hereby repealed:—

Repeals.

In the Portsmouth Corporation Act 1959—

1959 c. xlv.

Section 16 (Loans for erection, etc., of buildings).

In the Portsmouth Corporation Act 1967—

1967 c. xxxvi.

Section 8 (Amendment of section 16 of Act of 1959);

Section 54 (Amendment of section 72 of Act of 1959).

18. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority.

Protection of
members and
officers of
Corporation
from personal
liability.

1875 c. 55.

All the costs, charges and expenses preliminary to, and of incidental to, the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Corporation out of the general rate fund or out of moneys borrowed under this Act for that purpose.

Costs of Act.

SCHEDULES

SCHEDULE 1

Section 7.

TRUSTS APPLICABLE TO DESIGNATED SUMS

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 7 (Power to require designated sums to be paid to trustees) of this Act shall apply and the income thereof upon the following trusts, and with and subject to the following powers and provisions, that is to say:—

1. During the period of twenty-one years from the death of the former contributor, the trustees may pay or apply the designated sum and the income thereof, or any part thereof, respectively or for the benefit of, all or any one or more exclusively of the other or others of the following persons:—

- (a) the widow or widower of such former contributor;
- (b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous deceased wife or husband of such former contributor;
- (c) the issue of such former contributor;
- (d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and
- (e) the person or persons (if any, and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person property such former contributor has at any time been guardian;

in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine, and so that the trustees may, if they think fit, pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof.

2. In addition to the powers conferred on them by virtue of paragraph 1 of this schedule during the said period of twenty years, the trustees may at any time pay or apply the designated sum and the income thereof, or any part thereof respectively, or for the benefit of, any person who in the opinion of the trustees was wholly or in part dependent on the earnings of such former contributor at his death, in such manner as the trustees shall in their absolute discretion think fit.

3. Subject as aforesaid, the designated sum and the income thereof, or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing provisions of this schedule, shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duchy of Cornwall) as would at the death of such former contributor have become entitled thereto under the Administration of Estates Act 1925, as amended by the Intestates' Estates Act 1952, or any

SCH. 1
—cont.

statutory modification or re-enactment thereof in force at the death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent, and so that such persons, if more than one, shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts, and subject to the conditions therein contained.

4. In this schedule “grandparents” and “issue” shall be construed as if the step-child, adopted child or illegitimate child of any person was that person’s child, and “issue” includes issue in any degree.

SCHEDULE 2

Section 72 OF THE PORTSMOUTH CORPORATION ACT 1959 AS AMENDED BY THIS ACT

Section 10.

1959 c. xlv.

(1) In its application to the Corporation subsection (3) of section 21 of the Local Government Superannuation Act 1937 shall have effect as if, for the obligation to invest any moneys forming part of the superannuation fund maintained by the Corporation under that Act but not for the time being required to meet payments out of, the securities in which trustees are authorised to invest, there were substituted an obligation to invest such moneys as follows (namely):—

Investment of superannuation fund.
1937 c. 68.

(a) in or upon any investments for the time being authorised by law for the investment of trust funds; or

(b) in or upon any of the stocks, funds or securities of any dominion, commonwealth, union, dependency or colony forming part of the British Commonwealth of Nations, or any province or state having a separate local legislature and forming part thereof respectively; or

(c) in or upon any of the stocks, bonds, mortgages or securities of any municipality, county or district council or local or public authority or board in the United Kingdom or any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or the legislature concerned to issue the same; or

(d) in or upon any stocks, shares, bonds, mortgages or securities, the capital whereof, or a minimum rate of dividend or interest whereon, is guaranteed by the United Kingdom Government or by the government of any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid; or

(e) in or upon any of the stocks, funds or securities of the government of any foreign country or state; or

(f) in or upon the bonds, debentures, debenture stock, convertible debenture stock, obligations or securities of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter, or registered or incorporated in any part of the world; or

SCH. 2
—cont.

- (g) in or upon any guaranteed, preference or ordinary stock or shares, or any preferred or deferred or other stock or shares of any company incorporated under any general or special Act of the United Kingdom Parliament or under any charter, or registered or incorporated in any part of the world, being stock or shares which at the time of making investment are quoted on any recognised stock exchange or similar institution; or
- (h) in the purchase, whether alone or jointly, or in common with any other person or corporation, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement; or
- (i) in the advance of money upon the security of—
 - (i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or
 - (ii) any legal estate or interest in immovable property comprised in a building agreement as specified in paragraph (h) of this subsection;
 and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Corporation, or by a mortgage or security made jointly to the Corporation and any other person; or
- (j) in undertaking or financing, whether alone or jointly with any other person—
 - (i) the erection of a new building or the improvement or extension of an existing building; or
 - (ii) building operations or other development;
 on land belonging to the Corporation or to any other person or on land which is, or will be, held by the Corporation jointly or in common with any other person; or
- (k) upon the security of freehold or leasehold ground rents, charges or rentcharges;

with power of varying such investments from time to time by sale, reinvestment or otherwise:

Provided that—

- (i) no such moneys as aforesaid shall be invested in any investment of the nature specified in paragraph (g) of this subsection at any time when the value of all the investments made under the said paragraph (g) which form part of the superannuation fund equals or exceeds three-quarters of the total value of the assets of that fund; and
- (ii) no such moneys as aforesaid shall be invested in any investment of the nature specified in paragraphs (h) and (j) of this subsection.

subsection at any time when the value of all investments made under the said paragraphs (h) and (j) which form part of the superannuation fund equals or exceeds one-quarter of the total value of the assets of that fund.

SCH. 2
—cont.

(2) For the purposes of the last foregoing subsection the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(3) In subsection (1) of this section "recognised stock exchange", in its application to the United Kingdom, means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1958, or the 1958 c. 45. Belfast Stock Exchange.

§

PRINTED IN ENGLAND BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR
HARRY PITCHFORTH

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

2s. 0d. net